

Ethics and Surveillance

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PHI 2005: Business Ethics

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July 13, 2025

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Some methods of workplace surveillance have often been criticized due to their “invasive” nature. The ethical concerns that have arisen from businesses wanting to protect their company’s assets, detect fraud, and evaluate performance have led to deeper concerns about employees’ rights and the extent to which practices are ethical. Specifically, the collection and use of online behavioral data from third party sources as a surveillance method have raised alarm bells in different contexts, as explained by Albert Fox Cahn’s TED Talk, *The Shift We Need to Stop Mass Surveillance* (2022).

Summary of TedTalk

In the TED talk, the speaker, Albert Fox Cahn, highlights how bodies of power (e.g., government agencies, businesses) can buy or access location and behavior information online. It has its fair share of uses, but there is an unmistakable violation of privacy when it comes to gathering information about someone or a group of people this way. Cahn uses the IRS as a broad example of how the information is used; they can determine, using geofence warrants and location data from various sources like online companies and data brokers, whether a company based in Florida was operating in California. The widespread availability of personal data, he argues, is often misused not only by state officials but also by data brokers who profit from selling this information. That said, Cahn advocates for legal firewalls and transparency protections at federal and state levels to limit the potential for these abuses. .

Moral Theories and Opinion

Although employers do not have the power to use geofence warrants or such, Cahn demonstrates throughout the TED Talk how easy it is for any powerful body, whether it be the government or a company, can access and exploit that information for self-serving purposes.

While it does have the potential to curb fraud and maintain productivity (e.g., verifying remote location compliance, analyses of activity online), it becomes ethically problematic when it involves personal details about someone's profile that does not impact their ability to do their job (e.g., identity, interests, political affiliation). From a deontological perspective, this is a violation of privacy as data was purchased or gathered without employee consent, and such information could potentially be used to make arbitrary decisions that impact them negatively by employers such as discrimination or dismissing them unfairly. Employers have a moral duty to disclose what data is collected, why, and how it may be used; ethical business practices require not just legal compliance but also an effort to be transparent and uphold stakeholder's rights (Hartman et al.). Without transparency, these surveillance practices would no longer serve a utilitarian purpose of maximizing work productivity either since such violations of privacy can lead to increased stress, the erosion of trust, and diminished privacy by employees which can reduce their morale and collective utility.

Conclusion

Albert Fox Cahn's TED Talk examines how anyone can buy or access personal location data, including businesses and government agencies, for security purposes but also the collection of personal information that can lead to negative consequences. Collecting data for surveillance purposes, especially without employee consent, is deontologically incorrect especially when it can lead to possible negative consequences for employees and the future of their job. Per a utilitarian approach, while surveillance might aid efficiency in analyzing specific employees' behaviors, the information they gather can decrease morals and trust leading to a significant, collective decline of how employees can complete their job. Taken together, these ethical theories raise a clear need that businesses should implement clear and transparent surveillance

policies, resist purchasing data even when it seems convenient, and have an organizational practice that requires genuine respect for privacy as it is the moral thing to do.

References

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